



## GOVERNMENT OF KERALA

### Abstract

Home Department- Regulating the use of loudspeakers during School Examinations-Orders issued.

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### HOME (F) DEPARTMENT

G.O.(Rt)No.3395/2023/HOME Dated,Thiruvananthapuram, 23-11-2023

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- Read
1. Letter No:32-384/2022/NCPCR/Misc/LC/DD-1396 dated 20-12-2022 from National Commission for Protection of Child Rights, Government of India.
  2. Letter No.U1-91122/2022/PHQ Dated 02.03.2023 from the State Police Chief.

### ORDER

The National Commission for Protection of Child Rights, exercising its power under Section 13(1)(j) of CPCR Act, 2005 has directed to issue necessary directions to all the District Magistrates of the State for regulating the use of loudspeakers as per the guidelines issued by the Hon'ble Supreme Court of India in W.P.(C) No-72 /1998 vide letter read as first paper above.

2. It has been observed by the Commission that use of loudspeakers beyond the permissible limit is a common phenomenon in various social/religious/political events/functions. As a result of which, the students preparing for their examinations are not only disturbed but also not able to give their best in their examinations.

3. Government have examined the matter in detail and are pleased to issue the following guidelines, which are in accordance with the orders issued by the Honorable Supreme Court of India in W.P.(C) No-72/1998 for strict adherence and in addition to the instructions already issued by the State Police Chief for the use and control of loud speakers as per provisions in the Noise Pollution (Regulation and Control) Rules 2000, based on the orders of the Hon. High Court, State Commission for Protection of child Rights and the Hon.National Green Tribunal in this regard.

- The noise level at the boundary of the public place where loudspeaker or public address system or any other noise source is being used shall not exceed 10 dB(A) above the ambient noise standards for the area or 75 dB(A) whichever is lower.
- No one shall beat a drum or tom-tom or blow a trumpet or beat or sound any instrument or use any sound amplifier at night (between 10.00 p.m. and 6 am.) except in public emergencies.
- The peripheral noise level of privately-owned sound system shall not exceed by more than 5 dB(A) than the ambient air-quality standard specified for the area in which it is used, at the boundary of the private place. Also the Noise Pollution (Regulation and Control) Rules 2000 has laid down the permissible noise levels in India - In industrial areas, the permissible limit is 75 dB for daytime and 70 dB at night. In commercial areas it is 65 dB and 55dB, while in residential areas it is 55 dB and 45 dB during daytime and night respectively.

(By order of the Governor)

BISHWANATH SINHA

ADDITIONAL CHIEF SECRETARY

State Police Chief, Thiruvananthapuram

All District Magistrates

All District Police Chiefs

The Member Secretary, Kerala State Pollution Control Board

✓ The Information Officer, Web & New Media, I&PRD

Environment Department

Stock File/Office Copy.

Forwarded /By order

Signed by

Shabeer S

Date: 25-11-2023 00:36:10

Section Officer